



How hospital, residential or nursing home stays affect disability benefits

When a claimant of either Disability Living Allowance, Personal Independence Payment or Attendance Allowance goes in to residential, respite or hospital care their entitlement to the benefit can be affected.

Residential and respite care

After 28 days of care, known as the '28 day linking rule' the DLA care component, PIP daily living component and AA will stop while in care. The mobility component can continue to be paid in most cases.

In hospital or 'similar institution'

After 28 days the whole of DLA, PIP and AA will stop. Responsibility for notifying the DWP of any period of care lies with the claimant or their appointee. It is also important to remember to notify the DWP at the end of the care period so that entitlement can be restored.

A 'similar institution' is an establishment delivering inpatient medical or other treatment free of charge under the auspices of the National Health Service.

Calculating periods of care

The day the claimant enters care and the day they leave are called travelling days and are treated as days at home. A period of care is therefore from midnight to midnight. For example, a person that goes into hospital early on a Thursday morning and returns home late on Monday will have had therefore a period of care of three days.

Separate periods of care can be added together until 28 have accrued at which point the DLA, PIP and AA will be affected.

To break this '28 day linking rule' there would need to be a gap of at least 29 days without any periods in care and the calculation will begin again.

Self-funders

A self-funder entering residential or respite care can continue to be entitled to DLA care, PIP daily living and AA without being affected by the 28-day rule.

NHS Continuing Health Care funding

NHS CHC in a nursing home - all of DLA, PIP and AA will stop after 28 days.

NHS CHC in a residential home - DLA care, PIP daily living and AA will stop after 28 days but mobility components can continue to be paid in some cases. Seek advice.

NHS CHC and living at home - entitlement to the benefits is not affected.

DWP benefit entitlement letters clearly state that going into residential care or hospital must be notified to them. Failure to notify the DWP of such care can lead to an overpayment demand if the 28-day rule is exceeded.

If you need further advice you can contact Nottinghamshire County Council for more information using the details provided below.

Contact information:

Phone: 0300 500 80 80

Monday - Friday, opening times may vary.

Calls are charged at local rate.

Email: enquiries@nottscc.gov.uk

Website: www.nottinghamshire.gov.uk